

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:
Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION NO. 139 OF 2009

Jogesh Chandra Aditya and another
..... Petitioners

-Versus-
Shukur Ali and others
..... Opposite Parties

Mr. Mansur Habib, Advocate
..... For the Petitioners
Mr. Md. Mujibur Rahman for
Mr. Chanchal Kumar Biswas, Advocate
..... For the Opposite Party No.1

Heard on 27.07.2016 and
Judgment on 17.08.2016

At the instance of the defendant Nos. 15 and 16 appellant-petitioners, Jogesh Chandra Aditya and another, this Rule has been issued calling upon the opposite party No. 1 to show cause as to why the impugned judgment and decree of affirmance dated 07.04.2008 passed by Additional District Judge at Sunamgonj in Title Appeal No. 19 of 2006 should not be set aside and/ or pass such other or further order or orders as to this court may seem fit and proper.

The relevant facts for disposal of the Rule, inter alia, are that the present opposite party No. 1, Sukur Ali as the plaintiff filed the Title Suit No. 18 of 1998 in the court of Joint District Judge, Ist Court, Sunamgonj for declaration of title in the schedule land measuring 1.82 acres of land under Plot No. 550, S.A. Kh. Nos, 86 and 92 in Mouza-Kaitak under P.S.

Chhatak, District-Sunamgonj and also for a declaration that the suit property is not vested property.

The plaintiffs' case, in short, inter alia, is that the suit land originally belonged to Raj Gabinda Nag Chowdhur, Jogendra Kumar Nag Chowdhury, Hemlota and Narendra Kumar Nag Chowdhury who are the predecessors of the defendant Nos. 6 to 16 and who are the predecessor in interest of the suit land. The above mentioned predecessor of the defendants transferred the suit land to Furkan Ullah by a registered kabala deed executed on 28.10.1923 and delivered possession of the land to him. The suit land was mentioned in the said kabala in lot No. 20 plot No. 2 where he used to grow Aman and Boro Paddy. The said Furkan Ullah died leaving behind his only son the plaintiff in the suit Sukur Ali and the plaintiff has been in possession of the suit land but he is an aged person. The said Sukur Ali executed a power of attorney in favour of his son Rais Ali. The further case of the plaintiff opposite party No. 1 is that in the year of 1993 he came to know by the survey of the suit land his property was recorded in the name of the government. The plaintiff went to Tashil Office where he also could found that the property was recorded in the name of the defendant Nos. 6 to 14 erroneously. On 08.05.1998 he obtained the S.A. Khatian from the government official record of right in wrong name.

The suit has been contested by the defendant Nos. 1-5 by filing separate written statements. The case of the defendant Nos. 1-5 is that the suit land was correctly recorded in the names of the Raj Kumar Nag Chowdhury, Narendra Kumar Nag Chowdhury and others who left the country before 1965, as such, the property entered in the list of enemy

property. The defendant Nos. 15-16 also filed another written statement contending that the property was recorded in the names of Narendra, Jogendra, Jagen Chandra Aditya, Rabindra Kumar Aditya, Raj Gobinda Nag Chowdhury and Rajendra Kumar Nag Chowdhury and each of them had share of 1/6 in the property. Raj Gabinda Nag Chowdhury died leaving behind 2 sons namely Rajkumar NagChowdhury and Rajswar Nag Chowdhury died leaving behind 2 sons Rabindra Kumar and Ramendra Kumar. In Khatian No. 86 and 92 total land is 6.30 acre and the defendants got 1.82 acre in plot No. 550 by amicable settlement and for the purpose of constructing Kaitak Haidarpur Road a portion of land was acquisitioned and the remaining land stood 1.50 acres. In 1406 B.S. the local Tahshildar disclosed that the suit land is vested property. They obtained the copy of porcha of the khatian no. 92 and 86 and found that 5 ganda land was recorded in khatian No. 86 in the name of the these defendants but in khatian no. 92 the names of the defendants were not recorded and as such the record is wrong and these defendants are in possession for the last 40 years and all the co sharers of the suit land are in Bangladesh.

After hearing the parties and considering the evidence filed on behalf of the plaintiff and the defendant the suit was decreed by the judgment and order dated 02.11.2005. Being aggrieved the private defendants filed the Title Appeal No. 19 of 2006 and the defendant-government also filed the Appeal No. 27 of 2006 in the court of learned District Judge which were heard by the learned District-Judge, Sunamgonj on transfer who by judgment and decree dated 07.04.2008 dismissed the appeal. This

revisional application has been filed challenging the said impugned order and the Rule was issued thereupon.

Mr. Mansur Habib, the learned Advocate appearing for the petitioner submits that the claim of the plaintiff was that his father purchased the suit land by a kabala dated October, 28, 1923 but he never mutated his name nor paid any rent either to the Superior landlord or to the Government the courts below committed error of law resulting in the decision occasioning failure of justice in decreeing the suit under such circumstances.

The learned Advocate further submits that the plaintiff filed the suit for the land measuring 1.42 in Dag No. 550, Khatian Nos. 86 and 92. However a survey was undertaken by the Advocate Commissioner who submitted a report containing the land measuring 1.82 acres, therefore, the plaintiff could not make out his own case as to the identity of the suit land but the learned trial court and also the appellate court below failed to take into consideration of the said commission as to the measurement of land, therefore, concurrently came to a wrongful conclusion which are liable to be set aside. The learned Advocate further submits that the regarding the possession of the suit land the plaintiff could not prove his possession.

The learned Advocate also submits that that the courts below misread and misconceived the facts, therefore, failed to consider that the record of right was in favour of the present defendant-petitioners who could prove that the land was in possession by cultivating crops in the land for a long period of time, as such, the Rule should be made absolute.

The Rule has been opposed by the opposite party No. 1 Sukur Ali.

Mr. Chanchal Kumar Biswas, the learned Advocate appearing for the opposite party No. 1 submits that after considering the relevant documents in the case which have been accepted by the learned trial court and decreed the suit as the plaintiff proved the case by adducing and producing sufficient documents and the learned appellate court also considered the case of the plaintiff and dismissed the appeal filed by the present defendant-petitioners 15-16 as the private party as well as by the defendant opposite party Nos. 2 to 7 on the basis of the documentary evidence adduced and produced by the parties in the trial, therefore, there are no illegality committed by the learned trial court as well as by the learned appellate court, as such, the Rule is liable to be discharged.

The learned Advocate further submits that originally the land was owned by the present opposite party No. 7 Raj Kumar Nag Chowdhury and others but they have executed a sale deed on 28.10.1923 in favour of the predecessor of the present opposite party No. 1 Forkan Ullah and the said deed has been exhibited as exhibit No. 2 and 2 (Ka) and after death of Forkan Molla his only son has lawfully inherited the land as well as the possession from his father. The land mentioned as the schedule in the said deed dated 28.10.1923 contains some land than the present suit land but the land measuring 1.82 acres out of the total land of the deed was lawfully recorded which prompted the present opposite party No. 1 to file the suit and the suit has been decreed by the trial court after consideration of the all available materials filed by the party. The plaint was subsequently amended as to the measurement of land as per report submitted by the

Advocate Commissioner and the present defendant-petitioners did not raise any objection against the Advocate Commissioner report.

Considering the above submissions made by the learned Advocate appearing for the respective parties and also considering the application filed under section 115(1) of the Code of Civil Procedure along with its Annexures therein and also considering the Lower Court's Records, it appears to me that the original owner of the suit land were Raj Kumar Nag Chowdhury and Rajswar Nag Chowdhury, Jogendra Kumar Nag Chowdhury, Rabindra Kumar, Hemolota Nag Chowdhury. While they were owning and possessing they transferred total land 16 katha, 1 Hal and 8 Jaisto by a registered sale deed executed on 28.10.1923. In the instant case the most important matter is to be decided what their the deed executed by the owners of the land appertaining to Dag No. 350, S.A. Kh. No. 86 and 92, J.L. No. 327 under Mouza Kaitak, P.S. Chatak now District- Sunamgonj had authority to transfer in favour of the predecessor of the present plaintiff opposite party No. 1, Forkan Ulla. I have carefully examined the deed dated 28.10.1923 as exhibit 2 which is a very old document but it is surprisingly readable. Despite the facts the document created 93 years before has lost its temper. However the plaintiff-opposite party No. 1 also filed a certified copy which made it easier to read properly as to the contents of the deed exhibit- 2 (Ka). Now the question is to be answered whether the plaintiff could prove its own case. I have examined the testimony made by the plaintiff and the defendant witnesses.

P.W. 1 Rais Ali who is the attorney on behalf of the present opposite party No. 1 Sukur Ali who deposed as the P.W. 1 explained that his father

could not be deposed in the court as he is a person of 75 years old. This witness stated that the suit was filed originally in the name of Raj Gabindra Nag Chowdhury and others. Exhibit 3 and 3 (Ka) in the suit land situated at Dag No. 550 measuring the land 1.82 acres was recorded in two khatians but defendant could not bring any controversy in the statement of the P.W. 1.

P.W. 2, Kazol Darasdar. In his deposition supported the plaintiff case who stated that the plaintiff has been in possession by cultivating Amon and Baro crops. He also described the surrounding land including the land of Joykali Das.

P.W. 4, A. Mannaf Adiktor who stated that he saw Sukur Ali possession of the land and after him his son is in possession. The defendant-petitioner could not find out any serious controversy in the deposition of the P.Ws.

On the other hand, D.W.1, Jamaluddin stated as a witness that the government defendant is in possession of the land. Who denied the title by either of the present plaintiff and the defendant. The other D.Ws. also could not make out a case in favour of the present petitioner. In the above circumstances the legal position is that whether the plaintiff could prove its own case on the standard of balance of probability and the burden of proof lies upon the plaintiff. In this regard the plaintiff opposite party No.1 has produced exhibit- 2 and 2 (Ka) a registered deed dated 28.10.1923. On the other hand the defendant only claims the record of right published in the S.A. Record under the law of the Evidence Act, it is clear that a documentary evidence is more valuable than the subordinate documents for

claiming title upon a land. Moreover the plaintiff filed this case when he came to know about the wrong record, therefore, the defendants claim on the basis of the record of right has been under challenge. In view of such I consider that under the provision of law plaintiff-opposite party No. 1 could prove its case.

Moreover, the learned Joint District Judge, 1st Court, Sunamgonj decreed the suit filed by the present opposite party on the basis of the documents, in particular, the documents executed on 28.10.1923 on the basis of the following findings:

“নালিশা জমি দুই টুকরাই বলিয়া সে উল্লখ করি-লও এই সম্প-র্ক ডি, ডব্লিউ-৩ এর বক্তব্য ভিন্নরূপ। সুতরাং দখল সম্প-র্ক তাহার সা-ক্ষ্য গুরুত্ব দেখা যায় না। দখ-লর সা-ক্ষ্য পর্যা-লাচনায় করি-ল বাদীপ-ক্ষর সাক্ষীগন যাহারা সাক্ষ্য দিয়া-ছ তাহা-দর বক্তব্য অধিকতর গ্রহন-যোগ্য এবং বিশ্বাস-যোগ্য ম-র্ম দেখা যায় না। বাদী প-ক্ষর দখ-লর বয়স্ক এবং নির-পক্ষ সাক্ষী এবং তাহা-দর অবস্থা-নর বিষয় বিবাদীপ-ক্ষর সাক্ষী-দর সা-ক্ষও স্বীকৃত। এই অবস্থায় বিশ্বাস করার সঙ্গত কারণ রহিয়া-ছ যে, বাদীপক্ষ তাহার পিতার সময় হই-ত একাদিক্রমে নালিশী জমি -ভাগ দখল ক-র। ফুরকান উল্ল্যা নালিশা জমির স্বত্ব অর্জন করিয়াছিল এবং তাহার মৃত্যুর পর বাদী দখ-ল। নালিশা জমি অর্পিত এবং অনাগরিক সম্পত্তি বলায় এবং উহা বাদীর না-ম রেকর্ড না হওয়ায় তাহার স্বত্বে কালিমা সৃষ্টি হইয়া-ছ এবং বাদীর আনীত মোকদ্দমাটি বর্তমান আকা-র রক্ষণীয়। বিচার্যবিষয়ঃ নং- ৪ঃ অপর বিচার্য বিষয়গুলি বাদীপক্ষের সপ-ক্ষ সাব্যস্ত হওয়ায় বাদীপক্ষ প্রার্থিত স-ত্ব ডিক্রী এবং উহা অর্পিত এবং অনাগরিক সম্পত্তি সয় ম-র্ম ঘোষণা মূলক ডিক্রী পাই-ত পা-রা।”

The learned appellate court below also after considering the evidence adduced and produced by the parties came to a conclusion to dismiss the appeal filed by the present defendant Nos. 15-16-petitioners by dismissing the appeal on the basis of the following finding:-

“অপরদি-ক মূল মোকাদ্দমার ১৫/১৬ নং বিবাদী নালিশী সম্পত্তিতে তাহা-দর ওয়ারিশ সম্পত্তি হিসা-ব দাবী করি-লও তৎম-র্ম কোন দালিলিক কাগজাদি আদাল-ত প্রদর্শন ক-রন নাই। বিবাদী প-ক্ষর ৪ জন সাক্ষীর সাক্ষ্য পর্যা-লাচনায় নালিশী সম্পত্তিতে ১৫/১৬ নং বিবাদীর দখল সম্প-ক ভিন্নরূপ বক্তব্য প্রদান করা হইয়া-ছ। তাছাড়া ১-৫ নং সরকার বিবাদী পক্ষ নালিশি সম্পত্তি ভি, পি সম্পত্তি ভি, পি সম্পত্তি হিসা-ব দাবী করিয়া নালিশি সম্পত্তি দখ-ল আ-ছ বলিয়া যে বক্তব্য প্রদান করিয়া-ছেন তাহা তাহা-দর কোন সাক্ষীর ধারা আদাল-ত পারিস্কারভা-ব প্রমান ক-রন নাই। ১-৫ নং সরকার বিবাদী পক্ষ নালিশি সম্পত্তি ভি, পি তালিকাভুক্ত হওয়ার স্বপ-ক্ষ শুধুমাত্র ভি, পি তালিকার একটি ফ-টোকপি দাখিল করিয়া-ছেন। কিন্তু কেন এবং কিভা-ব

নালিশি সম্পত্তি ভি, পি তালিকাভুক্ত করা হইয়া-ছে তৎম-র্ম বিশ্বাস-যাগ্য কোন দালিলিক বা মৌখিক সাক্ষ্য আদাল-ত আ-স নাই। নালিশি সম্পত্তি ভি, পি তালিকাভুক্ত এবং সরকার বিবাদীপ-ক্ষ ইহা দখল ক-র তাহা বাদী ও ১৫/ ১৬ নং বিবাদী বা ১-৫ নং বিবাদী কাহারও সাক্ষ্য দ্বারা প্রমানিত হয় না। মূল মামলার আরজি, বিবাদীপ-ক্ষরলিখিত জবাব গৃহীত সাক্ষ্যপ্রমান আ-লাচনা পর্যা-লাচনাক্রমে বিজ্ঞ নিম্ম আদালত নালিশি ভূমির বিষ-য় বাদীপ-ক্ষর অনুকু-ল যে ঘোষনামূলক ডিক্রিপ্রদানসহ নালিশি সম্পত্তি অর্পিত ডিক্রি প্রদান করিয়া-ছেন তাহা-ত আইনগত ও তথ্যগত কোন ভুল না থাকায় উহা-ত হস্ত-ক্ষপ করা অত্রাদালত সমীচিন ম-ন ক-রন না। এমতাবস্থায় বিবাদী আপীলকারী পক্ষ বিজ্ঞ নিম্ম আদাল-তর তর্কিত রায় ও ডিক্রি রদ ও রহি-তর কোন যুক্তিসংগত কারন অত্র আপীল আদাল-তর নিকট উপস্থাপন করি-ত না পারায় অত্র আপীল মামলাটি না-মনজুর-যাগ্য বলিয়া বি-বচিত হইল।
 অত্র আপীলের মূল মোকদ্দমা অর্থাৎ স্বত্ব ১৮/৯৮ মোকদ্দমার একই তারি-খর রায় ও ডিক্রি রদ ও রহি-তর প্রার্থনায় ১-৪ নং সরকার বিবাদী পক্ষ স্বত্ব আপীল ২৭/০৬ নং মোকদ্দমা আনয়ন করিয়া-ছেন।”

In view of the above finding and also considering the record in this case I am of the view that the learned courts below have not committed any error of law in passing the judgment in favour of present plaintiff opposite party No. 1, as such, I could not find any illegality in the impugned judgment passed by the learned Additional District Judge, Sunamgonj on 07.04.2008. I am, therefore, not inclined to interfere with the judgment.

Accordingly, I do not find any merit in the Rule.

In the result, the Rule is discharged.

The office is directed to communicate the judgment and order to the court concerned and also send down the Lower Court Records immediately.